

DATA PROCESSING ADDENDUM

1. Introduction

This Data Processing Addendum (“**Addendum**”) applies to Laravel’s Processing of Customer’s Personal Data on Customer’s behalf as a Processor for the provision of Services specified in the applicable Terms of Service agreement under which Laravel provides services or products to Customer (“**Agreement**”).

For the purposes of this Addendum only, the term (“**Customer**”) shall include Customer and its Affiliates to the extent such Affiliates are included and covered under the Agreement. All capitalized terms not defined in this Addendum shall have the meanings set forth in the Agreement.

2. Definitions

- a. “**Affiliate**” means any entity that directly or indirectly controls, is controlled by, or is under common control with the subject entity. “Control” for purposes of this definition, means direct or indirect ownership or control of more than 50% of the voting interest of the subject entity.
- b. “**Applicable Data Protection Law**” means all privacy and data protection laws and regulations that apply to the Processing of Personal Information under this Addendum, which may include European Data Protection Legislation.
- c. “**CCPA**” means the California Consumer Privacy Act of 2018.
- d. “**Controller**” (or any equivalent term) has the meaning set forth under Applicable Data Protection Law.
- e. “**Customer Data**” means the Personal Data that Laravel Processes on behalf of Customer.
- f. “**Data Subject**” means the identified or identifiable natural person who is the subject of Personal Data or the meaning as set forth in Applicable Data Protection Laws, including similar terms, such as “Consumer” as used in the CCPA.
- g. “**European Data Protection Legislation**” means the GDPR and other data protection laws of the EU, its Member States, and the United Kingdom, applicable to the Processing of Customer Personal Data under the Agreement.
- h. “**GDPR**” means Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to the Processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC.
- i. “**Processing**” and “**Processor**” (or any equivalent terms) have the meanings set forth under Applicable Data Protection Law.

- j. **“Personal Data”** means “personal data”, “personal information”, “personally identifiable information” or any equivalent term under Applicable Data Protection Law.
- k. **“Security Incident”** means a breach of Laravel’s security leading to the accidental or unlawful destruction, loss, alteration, unauthorized disclosure of, or access to, Customer Personal Data in Laravel’s possession, custody or control, to the extent the incident constitutes a reportable “data breach,” “personal data breach,” “breach of the security of the system,” or other similar term as defined under applicable law. “Information Security Incidents” will not include unsuccessful attempts or activities that do not compromise the security of Customer Personal Data, including unsuccessful log-in attempts, pings, port scans, denial of service attacks, and other network attacks on firewalls or networked systems.
- l. **“Services”** means the services and/or products to be provided by Laravel to Customer under the Agreement.
- m. **“Subprocessor”** means any third-party authorized under this Addendum to Process Customer Data in assistance with fulfilling its obligations with respect to providing Services under the Agreement.

3. General; Termination

a. This Addendum forms part of the Agreement and except as expressly set forth in this Addendum, the Agreement remains unchanged and in full force and effect. If there is any conflict between this Addendum and the Agreement, this Addendum will govern.

b. Any liabilities arising under this Addendum are subject to the limitations of liability in the Agreement.

c. This Addendum will be governed by and construed in accordance with governing law and jurisdiction provisions in the Agreement, unless required otherwise by Applicable Data Protection Laws.

d. This Addendum will remain in effect until, and automatically terminate upon, deletion of Customer Data as described in this Addendum.

4. Relationship of the Parties

a. Laravel as Processor. The parties acknowledge and agree that Laravel is a Processor, meaning that Laravel Processes Customer Data at the direction of and on behalf of the Customer.

5. Compliance with Law.

a. Each party will comply with its obligations under Applicable Data Protection Law with respect to the Processing of Customer Data.

6. Role and Scope of the Processing

a. Customer Compliance Responsibilities. As between Laravel and Customer, Customer is solely responsible for obtaining and maintaining all the necessary rights and licenses, consents, permissions, waivers and releases to use Customer Data and to enable Laravel to use Customer Data. Customer has obtained, and will continue to obtain, all consents, permissions, and rights necessary under applicable laws, including Applicable Data Protection Laws, for Laravel to lawfully process Customer Data for the purposes contemplated by the Agreement. Customer has complied with all applicable laws, rules, and regulations,

including Applicable Data Protection Laws, in the collection and provision to Laravel and its Subprocessors of such Customer Data. Customer has a legally sufficient privacy policy or privacy notice that is made available to individuals prior to their provision of any Personal Information to Customer or Laravel. Customer agrees that use of Customer Data by Laravel: (a) will not violate, misappropriate or infringe any rights of Laravel or any third party; (b) will not constitute defamation, invasion of privacy or publicity, or otherwise violate any rights of any third party, and (c) is not designed for use in any illegal activity or does not promote illegal activities, including, without limitation, in a manner that might be illegal or harmful to any person or entity. Use of Customer Data by Laravel will not distribute, share, or facilitate the distribution of unauthorized data, malware, viruses, Trojan horses, spyware, worms, or other malicious or harmful code.

b. Customer Instructions. Laravel will Process Customer Data only in accordance with Customer's documented, lawful instructions on behalf of the controller, except to the extent required by Applicable Data Protection Laws to which Laravel is subject or where Laravel becomes aware or believes that Customer's instructions violate Applicable Data Protection Laws, in which case Laravel will notify Customer. By entering into the Agreement, Customer instructs Laravel to Process Customer Data to provide the Services and pursuant to any other written instructions given by Customer and acknowledged in writing by Laravel as constituting instructions for purposes of this Addendum. Customer acknowledges and agrees that such instruction authorizes Laravel to Process Customer Data (a) to perform its obligations and exercise its rights under the Agreement; (b) to perform its legal obligations and to establish, exercise or defend legal claims in respect of the Agreement; and (c) does not conflict with the instructions given to the Customer by the controller to Process Customer Data.

7. Subprocessing

a. Customer specifically authorizes Laravel to use its Affiliates as Subprocessors, and generally authorizes Laravel to engage Subprocessors to Process Customer Data. In such instances, Laravel:

(i) will enter into a written agreement with each Subprocessor, imposing data protection obligations substantially similar to those set out in this Addendum to the extent applicable to the nature of the services provided by such Subprocessor; and

(ii) remains liable for compliance with the obligations of this Addendum and for any acts or omissions of the Subprocessor that cause Laravel to breach any of its obligations under this Addendum.

b. A list of Laravel's Subprocessors, including their functions and locations, is available at and may be updated by Laravel from time to time in accordance with this Addendum. When any new Subprocessor is engaged, Laravel will, at least 30 days before the new Subprocessor Processes any Customer Data, notify Customer of the engagement (including the name and location of the relevant Subprocessor and the activities it will perform) by updating the list referenced above.

c. In order to make an objection to Laravel's use of any new Subprocessors, Customer must email security@laravel.com or other method as communicated by Laravel to Customer in the future, to subscribe to notice of new Subprocessors that will be engaged to Process Customer Data. If Customer has subscribed to notices as set forth in the preceding sentence, within five (5) calendar days after such notice, Customer notifies Laravel in writing that Customer objects to Laravel's appointment of a new Subprocessor based on reasonable data protection concerns, the parties will discuss such concerns in good faith and whether they can be resolved. If the parties are not able to mutually agree to a resolution of such concerns within a reasonable timeframe, Customer, as its sole and exclusive remedy, may terminate the Agreement for convenience with no refunds and Customer will remain liable to pay any committed fees in an order form, order, statement of work or other similar ordering document.

8. Security

a. Security Measures. Laravel will implement and maintain technical and organizational security measures designed to protect Customer Data from Security Incidents and to preserve the security and confidentiality of the Customer Data, in accordance with any security standards referenced in the Agreement and as set forth in Schedule 2 (“**Technical & Organizational Security Measures**”). Laravel will grant access to Customer Data only to employees, contractors and Subprocessors who need such access for the scope of their performance, and are subject to appropriate confidentiality arrangements.

b. Customer Responsibility.

(i) Customer is responsible for reviewing the information made available by Laravel relating to data security and making an independent determination as to whether the Services meet Customer’s requirements and legal obligations under Applicable Data Protection Laws. Customer acknowledges that the Security Measures provide a level of security appropriate to the risk in respect of the Customer Data and that they may be updated from time to time to reflect process improvements or changing practices (provided that the modifications will not materially decrease Laravel’s obligations as compared to those reflected in such terms as of the Effective Date).

(ii) Customer agrees that, without limitation of Laravel’s obligations under this Section 8, Customer is solely responsible for its use of the Services, including (a) making appropriate use of the Services to ensure a level of security appropriate to the risk in respect of the Customer Data; (b) securing the account authentication credentials, systems and devices Customer uses to access the Services; (c) securing Customer’s systems and devices that it uses with the Services; and (d) maintaining its own backups of Customer Data.

c. Security Incident. Upon becoming aware of a confirmed Security Incident, Laravel will notify Customer without undue delay unless prohibited by applicable law. A delay in giving such notice requested by law enforcement and/or in light of Laravel’s legitimate needs to investigate or remediate the matter before providing notice will not constitute an undue delay. Such notice to Customer will describe, to the extent possible, (a) the details of the Security Incident as known or as reasonably requested by Customer, and (b) the steps taken, deemed necessary and reasonable by Laravel, to mitigate the potential risks, to the extent that the remediation is within Laravel’s reasonable control. Without prejudice to Laravel’s obligations under this Section 8.c., Customer is solely responsible for complying with Security Incident notification laws applicable to Customer and fulfilling any third-party notification obligations related to any Security Incidents. Laravel’s notification of or response to a Security Incident under this Section 8.c. will not be construed as an acknowledgement by Laravel of any fault or liability with respect to the Security Incident. These obligations will not apply to Security Incidents to the extent they are caused by Customer. Laravel’s notification of or response to a Security Incident will not be construed as an acknowledgement by Laravel of any fault or liability with respect to the Security Incident.

9. Audits and Reviews of Compliance.

a. Customer Audit. Customer may audit Laravel’s compliance with its obligations under this DPA up to once per year. In addition, Customer may perform more frequent audits (including inspections) in the event: (1) Laravel suffers a Security Incident affecting Customer Personal Information; (2) Customer has genuine, documented concerns regarding Laravel’s compliance with this DPA; or (3) where mandated by regulatory or governmental authorities with jurisdiction over Customer Personal Data subject to Applicable Data Protection Law. Laravel will contribute to such audits by providing Customer or Customer’s regulatory or governmental authority with the information and assistance reasonably necessary to conduct the audit, including any relevant records of Processing activities with respect to Customer Personal Information. Customer must submit a detailed proposed audit plan to Laravel which describes the proposed scope,

duration, start date of the audit. The audit must be conducted at a mutually agreeable time during regular business hours, subject to the agreed final audit plan. The audit may not unreasonably interfere with Laravel's business activities.

b. Audit Report in Lieu of Customer Audit. Laravel uses external auditors to verify the adequacy of its security measures with respect to its processing of Customer Data. Such audits are performed at least once annually by independent, third-party security assessors at Laravel's selection and expense. Audit reports (e.g., SOC 2 Type 2) shall be deemed confidential and shall be provided to Customer upon written request ("Audit Report"). If the Audit Report covers the scope and controls required to demonstrate compliance with Laravel's and Customer's compliance with this DPA and Applicable Data Protection Law, then Customer agrees to accept the applicable Audit Report in lieu of requesting an audit of the controls covered by the Audit Report in Section 8.a.

10. Impact Assessments and Consultations. Laravel will provide reasonable cooperation to Customer, to the extent Customer does not otherwise have access to the relevant information and such information is available to Laravel, in connection with any data protection impact assessment (at Customer's expense only if such reasonable cooperation will require Laravel to assign significant resources to that effort) or consultations with regulatory authorities as required by Applicable Data Protection Laws.

11. Data Subject Requests. Laravel will upon Customer's request (and at Customer's expense) provide Customer with such assistance as it may reasonably require to comply with its obligations under Applicable Data Protection Laws to respond to requests from individuals to exercise their rights under Applicable Data Protection Laws (e.g., rights of data access, rectification, erasure, restriction, portability and objection) in cases where Customer cannot reasonably fulfill such requests independently by using the self-service functionality of the Services. If Laravel receives a request from a Data Subject in relation to the Processing of their Customer Data, Laravel will advise the Data Subject to submit their request to Customer, and Customer will be responsible for responding to any such request.

12. Return or Deletion of Customer Data

a. Customer may delete or export Customer Data at any time while using the Services in a manner consistent with the functionality of the Service. Termination or expiration of the Agreement serves as instruction for Laravel to delete all Customer Data within a commercially reasonable timeframe.

b. Notwithstanding the foregoing, Customer understands that Laravel may retain Customer Data if required by law, and such data will remain subject to the requirements of this Addendum.

13. International Provisions

a. Processing in the United States and Jurisdiction Specific Terms. Customer can select the location of a Laravel-supported AWS processing facility based in the United States, United Kingdom, European Union, Singapore, or any other processing facility locations we support and make available to Customer from time to time. Absent an express selection by Customer, Customer acknowledges that, as of the Effective Date, Laravel's primary processing facilities are in the United States and that Laravel may, in connection with the provision of Services, need to transfer and process Customer Data to and in the United States and anywhere else in the world where Laravel or its Subprocessors maintain data processing operations. Laravel and Customer will ensure such transfers are made in compliance with the requirements of Applicable Data Protection Laws and this Addendum.

b. Cross Border Data Transfer Mechanism. To the extent that Customer's use of the Services requires an onward transfer mechanism to lawfully transfer Customer Data from a jurisdiction (i.e., the EEA, UK, Switzerland or any other jurisdiction listed in Schedule 3) to Laravel located outside of that jurisdiction

(a “**Transfer Mechanism**”), the terms and conditions of Schedule 3 (Cross Border Transfer Mechanisms) will apply.

SCHEDULE 1

SUBJECT MATTER & DETAILS OF PROCESSING

1. Nature and Purpose of the Processing. Laravel will process Customer Data for the purposes of providing the Service to Customer in accordance with this Addendum.
2. Duration of the Processing. The Term of the Agreement relating to the Processing plus the period until deletion of all Customer Data by Laravel in accordance with this Addendum.
3. Categories of Data. Data relating to individuals provided to Laravel in connection with the Services, by (or at the direction of) Customer.

SCHEDULE 2

TECHNICAL & ORGANIZATIONAL SECURITY MEASURES

As from the Addendum Effective Date, Laravel will implement and maintain the security measures set out in this Schedule 2. Laravel may update or modify such Security Measures from time to time provided that such updates and modifications do not materially decrease the overall security of the Services.

1. Laravel shall maintain the following security controls:

- a. Organizational management and dedicated staff responsible for the development, implementation and maintenance of Laravel's information security program.
- b. Audit and risk assessment procedures for the purposes of periodic review and assessment of risks to Laravel's organization, monitoring and maintaining compliance with Laravel's policies and procedures, and reporting the condition of its information security and compliance to internal senior management.
- c. Data security controls which include at a minimum, but may not be limited to, logical segregation of data, restricted (e.g. role-based) access and monitoring, and utilization of commercially available and industry standard encryption technologies for Personal Data that is: (a) being transmitted by Laravel over public networks (i.e. the Internet) or when transmitted wirelessly; or (b) at rest or stored on portable or removable media (i.e. laptop computers, CD/DVD, USB drives, back-up tapes).
- d. Logical access controls designed to manage electronic access to data and system functionality based on authority levels and job functions, (e.g. granting access on a need-to-know and least privilege basis, use of unique IDs and passwords for all users, periodic review and revoking/changing access promptly when employment terminates or changes in job functions occur).
- e. Employees are expected to be in compliance with Password controls as defined in Internal Password Policy.
- f. System audit or event logging and related monitoring procedures to proactively record user access and system activity for routine review.
- g. Operational procedures and controls to provide for configuration, monitoring and maintenance of technology and information systems according to prescribed internal and adopted industry standards, including secure disposal of systems and media to render all information or data contained therein as undecipherable or unrecoverable prior to final disposal or release from Laravel's possession.
- h. Change management procedures and tracking mechanisms designed to test, approve and monitor all changes to Laravel's technology and information assets.
- i. Incident / problem management procedures designed to allow Laravel to investigate, respond to, mitigate and notify of events related to Laravel's technology and information assets.
- j. Vulnerability assessment, patch management and threat protection technologies and scheduled monitoring procedures designed to identify, assess, mitigate and protect against identified security threats, viruses and other malicious code.
- k. Business resiliency/continuity and disaster recovery procedures designed to maintain service and/or recovery from foreseeable emergency situations or disasters.

SCHEDULE 3

CROSS BORDER DATA TRANSFER MECHANISM

1. Definitions.

- a. **“Standard Contractual Clauses”** means the 2021 Standard Contractual Clauses approved by the European Commission in decision 2021/914.
- b. **“UK IDTA”** means the UK international data transfer addendum (Schedule 5).

2. **UK IDTA.** For data transfers from the United Kingdom, the UK IDTA will be deemed entered into (and incorporated into this Addendum by reference) together with the Standard Contractual Clauses as set forth in Section 3 of this Schedule below.

3. **The 2021 Standard Contractual Clauses.** For data transfers from the EEA, the UK, and Switzerland that are subject to the Standard Contractual Clauses, the Standard Contractual Clauses will apply in the following manner:

- a. Module Two (Controller to Processor) will apply where Customer is a controller of Customer Data and Laravel is a processor of Customer Data;

- b. Module Three (Processor to Processor) will apply where Customer is a processor of Customer Data and Laravel is a processor of Customer Data;

- c. For each Module, where applicable:

- (i) in Clause 7, the option docking clause will not apply;

- (ii) in Clause 9, Option 2 will apply, and the time period for prior notice of Subprocessor changes will be as set forth in Section 7 (Subprocessing) of this Addendum;

- (iii) in Clause 11, the optional language will not apply;

- (iv) in Clause 17 (Option 1), the 2021 Standard Contractual Clauses will be governed by Irish law.

- (v) in Clause 18(b), disputes will be resolved before the courts of Ireland;

- (vi) In Annex I, Part A:

Data Exporter: Customer and authorized Affiliates of Customer.

Contact Details: Customer’s account owner email address, or to the email address(es) for which Customer elects to receive privacy communications.

Data Exporter Role: The Data Exporter’s role is outlined in Section 4 of this Addendum.

Signature & Date: By entering into the Agreement, Data Exporter is deemed to have signed these Standard Contractual Clauses incorporated herein, including their Annexes, as of the Effective Date of the Agreement.

Data Importer: Laravel Inc.

Contact Details: Laravel Privacy contact – privacy@laravel.com

Data Importer Role: The Data Importer's role is outlined in Section 4 of this Addendum.

Signature & Date: By entering into the Agreement, Data Importer is deemed to have signed these Standard Contractual Clauses, incorporated herein, including their Annexes, as of the Effective Date of the Agreement.

(vii) In Annex I, Part B:

The categories of data subjects are described in Schedule 1, Section 4.

The sensitive data transferred is described in Schedule 1, Section 6.

The frequency of the transfer is a continuous basis for the duration of the Agreement.

The nature of the processing is described in Schedule 1, Section 1.

The purpose of the processing is described in Schedule 1, Section 1.

The period of the processing is described in Schedule 1, Section 3.

For transfers to Subprocessors, the subject matter, nature, and duration of the processing is outlined at

(viii) In Annex I, Part C: The Irish Data Protection Commission will be the competent supervisory authority.

(ix) Schedule 2 serves as Annex II of the Standard Contractual Clauses.

4. As to the specific modules, the parties agree that the following modules apply, as the circumstances of the transfer may apply:

Controller-Controller - Module One

Controller-Processor - Module Two

Processor-Processor – Module Three

5. To the extent there is any conflict between the Standard Contractual Clauses or the UK IDTA and any other terms in this Addendum, including Schedule 4 (Jurisdiction Specific Terms), the provisions of the Standard Contractual Clauses or the UK IDTA, as applicable, will prevail.

SCHEDULE 4

UK IDTA

This Addendum has been issued by the Information Commissioner for Parties making Restricted Transfers. The Information Commissioner considers that it provides Appropriate Safeguards for Restricted Transfers when it is entered into as a legally binding contract.

Part 1: Tables

Table 1: Parties

Start date	the Effective Date of the Agreement	
The Parties	Exporter (who sends the Restricted Transfer)	Importer (who receives the Restricted Transfer)
Parties' details	See the Agreement	Full legal name: Laravel Holdings, Inc. Trading name (if different): n/a Main address (if a company registered address): 60 Broad St 24th Floor #1559 New York, NY 10004 United States Official registration number (if any) (company number or similar identifier): Delaware, 3022770
Key Contact	See the Agreement	Contact details including email: privacy@laravel.com
Signature (if required for the purposes of Section 2)	By entering into the Agreement, Exporter is deemed to have signed this Addendum.	By entering into the Agreement, Importer is deemed to have signed this Addendum.

Table 2: Selected SCCs, Modules and Selected Clauses

Addendum EU SCCs	The Approved EU SCCs, including the Appendix Information and with only the following modules, clauses or optional provisions of the Approved EU SCCs brought into effect for the purposes of this Addendum: See Schedule 3, Section 3.
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Personal data received from the Importer may be combined with personal data collected by the Exporter.

Table 3: Appendix Information

“**Appendix Information**” means the information which must be provided for the selected modules as set out in the Appendix of the Approved EU SCCs (other than the Parties), and which for this Addendum is set out in:

Annex 1A	List of Parties: See Table 1
Annex 1B	Description of Transfer: See Schedule 1
Annex II	Technical and organisational measures including technical and organisational measures to ensure the security of the data: See Schedule 2
Annex III	List of Sub processors (Modules 2 and 3 only): See

Table 4: Ending this Addendum when the Approved Addendum Changes

Ending this Addendum when the Approved Addendum changes	Which Parties may end this Addendum as set out in Section 19: Importer
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Part 2: Mandatory Clauses

Entering into this Addendum

- Each Party agrees to be bound by the terms and conditions set out in this Addendum, in exchange for the other Party also agreeing to be bound by this Addendum.

2. Although Annex 1A and Clause 7 of the Approved EU SCCs require signature by the Parties, for the purpose of making Restricted Transfers, the Parties may enter into this Addendum in any way that makes them legally binding on the Parties and allows data subjects to enforce their rights as set out in this Addendum. Entering into this Addendum will have the same effect as signing the Approved EU SCCs and any part of the Approved EU SCCs.

Interpretation of this Addendum

3. Where this Addendum uses terms that are defined in the Approved EU SCCs those terms shall have the same meaning as in the Approved EU SCCs. In addition, the following terms have the following meanings:

Addendum	This International Data Transfer Addendum which is made up of this Addendum incorporating the Addendum EU SCCs.
Addendum EU SCCs	The version(s) of the Approved EU SCCs which this Addendum is appended to, as set out in Table 2, including the Appendix Information.
Appendix Information	As set out in Table 3.
Appropriate Safeguards	The standard of protection over the personal data and of data subjects' rights, which is required by UK Data Protection Laws when you are making a Restricted Transfer relying on standard data protection clauses under Article 46(2)(d) UK GDPR.
Approved Addendum	The template Addendum issued by the ICO and laid before Parliament in accordance with s119A of the Data Protection Act 2018 on 2 February 2022, as it is revised under Section 18.
Approved EU SCCs	The Standard Contractual Clauses set out in the Annex of Commission Implementing Decision (EU) 2021/914 of 4 June 2021.
ICO	The Information Commissioner.
Restricted Transfer	A transfer which is covered by Chapter V of the UK GDPR.
UK	The United Kingdom of Great Britain and Northern Ireland.
UK Data Protection Laws	All laws relating to data protection, the processing of personal data, privacy and/or electronic communications in force from time to time in the UK, including the UK GDPR and the Data Protection Act 2018.

4. This Addendum must always be interpreted in a manner that is consistent with UK Data Protection Laws and so that it fulfils the Parties' obligation to provide the Appropriate Safeguards.
5. If the provisions included in the Addendum EU SCCs amend the Approved SCCs in any way which is not permitted under the Approved EU SCCs or the Approved Addendum, such amendment(s) will not be incorporated in this Addendum and the equivalent provision of the Approved EU SCCs will take their place.
6. If there is any inconsistency or conflict between UK Data Protection Laws and this Addendum, UK Data Protection Laws applies.
7. If the meaning of this Addendum is unclear or there is more than one meaning, the meaning which most closely aligns with UK Data Protection Laws applies.
8. Any references to legislation (or specific provisions of legislation) means that legislation (or specific provision) as it may change over time. This includes where that legislation (or specific provision) has been consolidated, re-enacted and/or replaced after this Addendum has been entered into.

Hierarchy

9. Although Clause 5 of the Approved EU SCCs sets out that the Approved EU SCCs prevail over all related agreements between the parties, the parties agree that, for Restricted Transfers, the hierarchy in Section 10 will prevail.
10. Where there is any inconsistency or conflict between the Approved Addendum and the Addendum EU SCCs (as applicable), the Approved Addendum overrides the Addendum EU SCCs, except where (and in so far as) the inconsistent or conflicting terms of the Addendum EU SCCs provides greater protection for data subjects, in which case those terms will override the Approved Addendum.
11. Where this Addendum incorporates Addendum EU SCCs which have been entered into to protect transfers subject to the General Data Protection Regulation (EU) 2016/679 then the Parties acknowledge that nothing in this Addendum impacts those Addendum EU SCCs.

Incorporation of and changes to the EU SCCs

12. This Addendum incorporates the Addendum EU SCCs which are amended to the extent necessary so that:
 - a. together they operate for data transfers made by the data exporter to the data importer, to the extent that UK Data Protection Laws apply to the data exporter's processing when making that data transfer, and they provide Appropriate Safeguards for those data transfers;
 - b. Sections 9 to 11 override Clause 5 (Hierarchy) of the Addendum EU SCCs; and
 - c. this Addendum (including the Addendum EU SCCs incorporated into it) is (1) governed by the laws of England and Wales and (2) any dispute arising from it is resolved by the courts of England and Wales, in each case unless the laws and/or courts of Scotland or Northern Ireland

have been expressly selected by the Parties.

13. Unless the Parties have agreed alternative amendments which meet the requirements of Section 12, the provisions of Section 15 will apply.
14. No amendments to the Approved EU SCCs other than to meet the requirements of Section 12 may be made.
15. The following amendments to the Addendum EU SCCs (for the purpose of Section 12) are made:
 - a. References to the “Clauses” means this Addendum, incorporating the Addendum EU SCCs;
 - b. In Clause 2, delete the words:

“and, with respect to data transfers from controllers to processors and/or processors to processors, standard contractual clauses pursuant to Article 28(7) of Regulation (EU) 2016/679”;
 - c. Clause 6 (Description of the transfer(s)) is replaced with:

“The details of the transfers(s) and in particular the categories of personal data that are transferred and the purpose(s) for which they are transferred) are those specified in Annex I.B where UK Data Protection Laws apply to the data exporter’s processing when making that transfer.”;
 - d. Clause 8.7(i) of Module 1 is replaced with:

“it is to a country benefiting from adequacy regulations pursuant to Section 17A of the UK GDPR that covers the onward transfer”;
 - e. Clause 8.8(i) of Modules 2 and 3 is replaced with:

“the onward transfer is to a country benefiting from adequacy regulations pursuant to Section 17A of the UK GDPR that covers the onward transfer;”
 - f. References to “Regulation (EU) 2016/679”, “Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (General Data Protection Regulation)” and “that Regulation” are all replaced by “UK Data Protection Laws”. References to specific Article(s) of “Regulation (EU) 2016/679” are replaced with the equivalent Article or Section of UK Data Protection Laws;
 - g. References to Regulation (EU) 2018/1725 are removed;
 - h. References to the “European Union”, “Union”, “EU”, “EU Member State”, “Member State” and “EU or Member State” are all replaced with the “UK”;
 - i. The reference to “Clause 12(c)(i)” at Clause 10(b)(i) of Module one, is replaced with “Clause 11(c)(i)”;
 - j. Clause 13(a) and Part C of Annex I are not used;
 - k. The “competent supervisory authority” and “supervisory authority” are both replaced with the “Information Commissioner”;

- l. In Clause 16(e), subsection (i) is replaced with:

“the Secretary of State makes regulations pursuant to Section 17A of the Data Protection Act 2018 that cover the transfer of personal data to which these clauses apply;”;

- m. Clause 17 is replaced with:

“These Clauses are governed by the laws of England and Wales.”;

- n. Clause 18 is replaced with:

“Any dispute arising from these Clauses shall be resolved by the courts of England and Wales. A data subject may also bring legal proceedings against the data exporter and/or data importer before the courts of any country in the UK. The Parties agree to submit themselves to the jurisdiction of such courts.”; and

- o. The footnotes to the Approved EU SCCs do not form part of the Addendum, except for footnotes 8, 9, 10 and 11.

Amendments to this Addendum

16. The Parties may agree to change Clauses 17 and/or 18 of the Addendum EU SCCs to refer to the laws and/or courts of Scotland or Northern Ireland.
17. If the Parties wish to change the format of the information included in Part 1: Tables of the Approved Addendum, they may do so by agreeing to the change in writing, provided that the change does not reduce the Appropriate Safeguards.
18. From time to time, the ICO may issue a revised Approved Addendum which:
- a. makes reasonable and proportionate changes to the Approved Addendum, including correcting errors in the Approved Addendum; and/or
 - b. reflects changes to UK Data Protection Laws;

The revised Approved Addendum will specify the start date from which the changes to the Approved Addendum are effective and whether the Parties need to review this Addendum including the Appendix Information. This Addendum is automatically amended as set out in the revised Approved Addendum from the start date specified.

19. If the ICO issues a revised Approved Addendum under Section 18, if any Party selected in Table 4 “Ending the Addendum when the Approved Addendum changes”, will as a direct result of the changes in the Approved Addendum have a substantial, disproportionate, and demonstrable increase in:
- a. its direct costs of performing its obligations under the Addendum; and/or
 - b. its risk under the Addendum,

and in either case it has first taken reasonable steps to reduce those costs or risks so that it is not substantial and disproportionate, then that Party may end this Addendum at the end of a reasonable notice period, by providing written notice for that period to the other Party before the start date of the revised Approved Addendum.

20. The Parties do not need the consent of any third party to make changes to this Addendum, but any changes must be made in accordance with its terms.

Alternative Part 2 Mandatory Clauses:

Mandatory Clauses	Part 2: Mandatory Clauses of the Approved Addendum, being the template Addendum B.1.0 issued by the ICO and laid before Parliament in accordance with s119A of the Data Protection Act 2018 on 2 February 2022, as it is revised under Section 18 of those Mandatory Clauses.
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